

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

5. S-CV-0052650 SPEED, JOELLE v. TRAVISMATHEW

Defendant's Motion for Summary Judgment

Preliminary Matters

The court preliminarily notes plaintiff's separate statement and objections to evidence do not follow the format requirements in California Rules of Court, Rules 3.1350 and 3.1354. The court admonishes plaintiff that future filings must adhere to the applicable filing requirements.

Defendant's requests for judicial notice are granted.

Both parties' objections are overruled in their entirety.

Ruling on Motion

Defendant moves for summary judgment as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) In reviewing a motion for summary judgment, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the "plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense." (*Ibid.*) Pursuant to the "golden rule" of summary judgments, "if it is not set forth in the separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff's complaint alleges a lone cause of action for premises liability against defendant. A premises liability cause of action has four elements: (1) duty; (2) breach (3) causation; and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.)

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Issue No. 1

Defendant first argues the alleged dangerous condition was open and obvious such that it did not owe plaintiff a duty of care.

Civil Code section 1714 establishes that a landowner is responsible for their want of ordinary care or skill in the management of their property. Accordingly, landowners “have a duty to maintain their premises in a reasonably safe condition. [Citations.] To comply with this duty, a person who controls property must inspect [the premises] or take other proper means to ascertain their condition and, if a dangerous condition exists that would have been discovered by the exercise of reasonable care, has a duty to give adequate warning of or remedy it.” (*Ramirez v. PK I Plaza 580 SC LP* (2022) 85 Cal.App.5th 252, 261 [internal quotation marks omitted].)

But, “if a danger is so obvious that a person could reasonably be expected to see it, then generally the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. [Citation.] However, this is not true in all cases. It is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger.” (*Ibid.*)

Notably absent from defendant’s separate statement, and evidence in support thereof, is any information about the cable cover. For example, defendant does not provide the cable cover’s height, width, length, location, or other evidence establishing it is open and obvious to individuals. Therefore, defendant does not meet its burden to establish the cable cord was open and obvious.

Issue No. 2

Defendant next argues “Defendant Callaway Golf Company, through its TravisMathew store, was in compliance with applicable fire safety regulations regarding the cord at issue, negating any breach of duty.” Defendant in its reply papers then attempts to revise the noticed issue to state the fire inspection reports instead “establish that Defendant identified and corrected the specific condition then existing, an electrical cord running under the rug, by April 19, 2022, nearly two months before the incident.” It thus appears defendant argues it knew about the alleged dangerous condition but nonetheless remedied the alleged dangerous condition before plaintiff’s fall.

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Appellate courts find that “[b]ecause the owner is not the insurer of the visitor's personal safety [Citation], the owner's actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner's lack of knowledge is not a defense, to impose liability for injuries suffered by an invitee due to a defective condition of the premises, the owner or occupier must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises....” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206 [internal quotation marks omitted].)

Defendant again does not meet its burden. Defendant does not present evidence that remedying a potential fire hazard also remedies the alleged tripping hazard here. And, defendant does not establish the alleged “cord in the path of travel” is the same cord cover that plaintiff tripped on.

Issue No. 3

The court observes defendant raises its purported third issue three distinct ways across three different documents. Notably, the third time defendant alters the third issue is in defendant’s reply papers.

As articulated in the notice of motion, “Plaintiff did not trip on an exposed electrical cord and therefore Plaintiff is unable to create a triable question of fact as to whether any act or omission by Defendant caused or contributed to her alleged injuries.”

As articulated in the separate statement in support of its motion, “Summary Judgment should be granted because Plaintiff Joelle Speed did not trip on an exposed electrical cord, but rather on a fixed table leg or floor fixture, and therefore no act or omission on the part of Defendant TravisMathew, LLC caused or contributed to Plaintiff’s alleged injuries, and Plaintiff is unable to create a triable question of fact regarding this issue.”

Defendant then revises the issue in its replay papers and asserts “Defendant does not dispute that this is Plaintiff’s operative account [tripping over a cord cover] and withdraws any suggestion that Plaintiff must prove she tripped on a bare cord to defeat this motion. Defendant likewise withdraws the assertion, made in the heading to Issue No. 3 of its separate statement, that Plaintiff tripped ‘on a fixed table leg or floor fixture.’ No undisputed material fact supports that assertion and Defendant does not rely on it.”

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It thus appears defendant's third issue, after several revisions, is that plaintiff did not trip on a cord cover. Defendant does not meet its burden to establish plaintiff did not trip on a cord cover.

In sum, defendant does not meet its burden for any of the issues raised and therefore the motion for summary judgment is denied.

6. S-CV-0053111 LEROY, JOSEPH v. PICKETT, RYAN

The motion to compel discovery is dropped from calendar as no moving papers were filed with the court.

7. S-CV-0054411 PANNU, PAUL v. DANILOVA, NADEZHDA

Defendants Artur Danulov and Nadezhda Danulova's Motion to Set Aside Default

Defendants Artur Danulov and Nadezhda Danulova's unopposed motion to set aside default and default judgment is granted. (Code Civ. Proc., § 473, subd. (b).) The default entered on January 7, 2026, and default judgment entered on June 1, 2026, are set aside.

Defendants Artur Danulov and Nadezhda Danulova shall file and serve their answer on or before **October 5, 2026**.

8. S-CV-0054641 ASSAD, QASSIM v. GENERAL MOTORS

Plaintiff's Motion for Attorney Fees, Costs, and Expenses

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)